

CRM-M-32804-2026

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**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH**

(111)

CRM-M-32804-2026

Date of Decision:- 03.06.2026

Seema Rani

.....Petitioner

Versus

State of Punjab

.....Respondent

CORAM: HON'BLE MR. JUSTICE ALOK JAIN

Present: Mr. Harmanjeet Singh Dhaliwal, Advocate
for the petitioner.

Mr. Japjot Singh, AAG, Punjab.

ALOK JAIN, J. (Oral)

1. The present petition has been filed seeking grant of anticipatory bail to the petitioner in case FIR No. 0076 dated 23.04.2026 under Sections 115(2), 303(2), 127(2), 351(2), 3(5) of BNS, 2023, (erstwhile Sections 323, 379, 342, 506, 34 of IPC) registered at Police Station Sadar Hoshiarpur, District Hoshiarpur (Annexure P-1).

2. Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the injuries alleged to have been sustained by the complainant are attributed to the co-accused and no specific injury has been assigned to the petitioner. Learned counsel further submits that the petitioner had also got registered an FIR against the complainant and, in the said case, the present complainant has been granted the concession of anticipatory bail. It is argued that the occurrence in both the FIRs pertains to the same incident

dated 30.03.2026.



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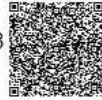
4. At this stage, Mr. Sanjay Gupta, Advocate, has put in appearance on behalf of the complainant and filed his *Vakalatnama* in Court today, which is taken on record, subject to all just exceptions.

5. Learned State counsel, assisted by learned counsel for the complainant, submits that it is a case of a honey-trap, wherein the petitioner allegedly extorted a substantial amount of money from the complainant. It is contended that when the complainant demanded the return of the said amount which he had given to the petitioner on credit basis, he was not only implicated in a false case but was also subjected to physical assault. Learned counsel further submits that the complainant suffered seven injuries, out of which three were simple in nature and other remaining injuries which required surgical opinion.

6. Learned counsel for the complainant further submits that there is cogent material on record, including video recordings, which demonstrate the involvement of the petitioner and are allegedly being used by her to exert pressure upon the complainant. It is argued that the custodial interrogation of the petitioner is imperative, as there is every likelihood that she may tamper with evidence and obstruct the course of justice.

7. Heard learned counsel for the parties at length.

8. Considering the fact that the matter at initial stage of investigation and having regard to the gravity of the allegations, the custodial interrogation of the petitioner assumes significant importance, especially in view of the settled principle of law laid down by the Hon'ble Supreme Court of India in "*CBI v. Anil Sharma*", (1997) 7 SCC 187, wherein it has been held as under:



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“We find force in the submission of the CBI that custodial interrogation is qualitatively more elicitation orientated than questioning a suspect who is well ensconced with a favourable order under Section 438 of the Code. In a case like this effective interrogation of suspected person is of tremendous advantage in disinterring many useful informations and also materials which would have been concealed. Success in such interrogation would elude if the suspected person knows that he is well protected and insulated by a pre-arrest bail order during the time he is interrogated. Very often interrogation in such a condition would reduce to a mere ritual. The argument that the custodial interrogation is fraught with the danger of the person being subjected to third degree methods need not be countenanced, for, such an argument can be advanced by all accused in all criminal cases. The Court has to presume that responsible Police Officers would conduct themselves in a responsible manner and that those entrusted with the task of disinterring would not conduct themselves as offenders.”

9. Accordingly, the custodial interrogation of the petitioner would be of grave importance, at this stage, to ensure that the investigation in this case comes to its logical end.

10. In light of the above, this Court does not find any ground to grant the extra ordinary concession of anticipatory bail to the petitioner, hence, the present petition is dismissed.

(ALOK JAIN)
JUDGE

03.06.2026

Parul

Whether speaking/reasoned:-
Whether Reportable:-

Yes/No
Yes/No